

Tentative Rulings for June 9, 2026 Department 2

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 2 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

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You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 143 8184**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVMV2604308	GUZMAN VS WAWANESA INSURANCE COMPANY	PETITION FOR COMPROMISE OF DISPUTED CLAIM

Tentative Ruling:

No Tentative Ruling. Matter to heard in open court. According to case management system, service upon Respondent is not completed.

2.

CASE #	CASE NAME	HEARING NAME
CVME2402823	MOTON VS GIBSON	MOTION TO COMPEL COMPLIANCE

Tentative Ruling:

See 3 below.

3.

CASE #	CASE NAME	HEARING NAME
CVME2402823	MOTON VS GIBSON	MOTION TO COMPEL: FURTHER ANSWERS/RESPONSES TO INTERROGATORIES FURTHER RESPONSES TO FORM INTERROGATORY 15.1

Tentative Ruling:

Summary of Rulings:

- (1) **The Court denies** Plaintiff's Motion to Compel Further Responses to FROG No. 15.1. **The Court denies** Plaintiff's Request for Monetary Sanctions.
- (2) **The Court continues** the hearing on Plaintiff's Motion to Compel Compliance. **The Court orders** Defendant to file substantive opposition no later than nine (9) court days before the continued hearing date and any reply no later than five (5) court days before the continued hearing date.

Factual/Procedural Context

Plaintiff Natalie Mary Moton ("Plaintiff") operates a working ranch in Temecula known as Namaste Farms where she has specialized in the production of wool, fiber, and wool products. (Compl. ¶ 6.) Plaintiff and Defendant Joni Gibson ("Defendant") are neighbors involved in a related title dispute—*Moton v. The Ark, LLC*, Case No.

CVSW2204328, filed in 2022—in which the parties stipulated that Defendant is not a good faith purchaser of property as the purchase took place while Defendant knew that Plaintiff has a claim to the property. (*Id.* at ¶¶ 7–9.)

Plaintiff alleges that beginning around September 3, 2024, Defendant began posting false claims on social media that animals at Namaste Farms, including dogs, were abused daily. (*Id.* at ¶ 11, Ex. A.) The posts included photos of an emaciated sheep that did not belong to Plaintiff and lacked any USDA ear tag, and Defendant posted a link to Namaste Farms’ homepage to encourage others to repeat the allegations. (*Id.* at ¶ 12.)

On September 6, 2024, Riverside County Animal Control and the Sheriff’s Department investigated and determined the allegations were “unfounded,” closing the investigation, as confirmed in the video transcript where the Sergeant of the Animal Control agreed the case was unfounded. (*Id.* at ¶ 15, Ex. B.) Plaintiff alleges that despite this, Defendant doubled down on September 7, 2024, falsely claiming Plaintiff had “swapped out” animals before investigators arrived, and removed the exonerating animal control video from her feed on September 11, 2024, while reposting the original false post and refusing to remove it or issue a retraction. (*Id.* at ¶ 16, Ex. C.)

On September 18, 2024, Plaintiff filed a Complaint against Defendant and her husband, Oliver Gibson (collectively, “Defendants”), asserting two causes of action: (1) defamation (*libel per se*), and (2) defamation (*trade libel*). Plaintiff seeks a preliminary and permanent injunction against Defendant from engaging in the alleged defamation, along with an order to take down the alleged defamatory posts. Plaintiff also seeks compensatory and general damages in an amount not less than \$1,000,000.00.

On February 14, 2025, Defendants filed their Answer to the Complaint, denying each and every allegation and asserting six affirmative defenses: (1) truth, (2) opinion, (3) Plaintiff is a public figure, (4) harm was caused by Plaintiff’s actions, not Defendants’, (5) Defendants’ actions were based on facts as known to them, and (6) mitigation.

On January 13, 2026, Plaintiff propounded several sets of discovery on Defendant, including the Form Interrogatory (“FROG”), Set One, and Requests for Production of Documents (“RFP”), Set Two. As relevant to the current motions, FROG No. 15.1 asked Defendant to identify each denial of a material allegation and each special or affirmative defense in her pleadings, and for each state the facts, witnesses, and documents supporting it. RFP Nos. 18–25 sought digital copies of all photos previously produced in discovery by Defendant with all preserved metadata, all documents that she identified in her responses to the FROGs concurrently served and the documents identified in her responses to Special Interrogatories (“SROG”).

Defendant served unverified responses to both sets on March 3, 2026, with verifications received on March 16, 2026. As to FROG No. 15.1, the initial response contained only objection, with no substantive answer. As to RFP Nos. 18–25, Defendant agreed, subject to privilege objections, to produce documents responsive to each request, including native digital photographs with preserved metadata and executed

witness declarations, Riverside County Code Enforcement records, and native digital photographs of the animals.

On March 5, 2026, Plaintiff sent a meet-and-confer letter addressing the deficiencies in Defendant's responses. On March 19, 2026, Defendant served a supplemental response to FROG No. 15.1, denying the material allegations generally and listing six affirmative defenses. However, rather than stating supporting facts, witnesses, and documents, it invoked CCP § 2030.230 to incorporate by reference Defendant's supplemental responses to SROG Nos. 1–18. As to RFP, defense counsel emailed on March 20, 2026, apologizing for the delay, but no documents followed.

On March 27, 2026, Plaintiff sent another meet-and-confer letter addressing both deficiencies. Plaintiff sent follow-up emails on April 6 and 13, 2026, with no response and no production received. On April 22, 2026, Plaintiff filed the two motions at issue—motion to compel further response to FROG No. 15.1 and motion to compel compliance regarding RFP.

After the motions were filed, Defendant served a further supplemental response to FROG No. 15.1 via email on May 22, 2026, which removed the section 2030.230 cross-references and provided substantive facts, witnesses, and documents. Plaintiff rejected it the same day as still inadequate for failing to identify specific material allegations. No production of the RFP documents has been made.

Motion to Compel Further Responses to FROG

Plaintiff seeks to compel further responses to FROG No. 15.1, arguing that Defendant's supplemental response is non-Code-compliant because it asserts affirmative defenses in a list without stating facts, persons with knowledge, or identifying documents. Plaintiff argues that responses to FROGs must be as complete and straightforward as possible as the information reasonably available permits under CCP § 2030.220, which Defendant failed to do. Plaintiff seeks monetary sanctions against Defendant in the amount of \$1,110.00.

In opposition, Defendant argues that the motion is moot because she served a further supplemental response in May 2026, after the motion was filed, providing facts, witnesses, and documents supporting her denials and defenses. Defendant contends that a "material allegation" is defined by statute as "one essential to the claim or defense and which could not be stricken from the pleading without leaving it insufficient as to that claim or defense." Because Plaintiff's Complaint hinges on two essential, material allegations—(1) that Defendant made false statements of fact, and (2) that those statements interfered with Plaintiff's business—Defendant argues she properly addressed those overarching allegations and that forcing her to artificially parse Plaintiff's pleading and copy-and-paste the exact same text dozens of times serves no legitimate discovery purpose. Defendant argues sanctions are unwarranted because she acted with substantial justification.

In reply, Plaintiff argues that the motion is not moot, contending that supplemental response served while a motion is pending does not divest the Court of

authority to rule. Plaintiff asserts that the further supplemental response is still not Code-compliant because it fails to identify material facts of the Complaint and gives only conclusory statements, and that Defendant's reliance on CCP § 2030.230 to refer Plaintiff to her SROG responses is expressly prohibited under the Code. Plaintiff also argues monetary sanctions remain available even where requested discovery is provided after the motion is filed.

Motion to Compel Compliance

Plaintiff moves under CCP § 2031.320 for an order compelling Defendant to produce documents she agreed to produce in her verified responses to RFP, Set Two. Plaintiff explains that on March 3, 2026, Defendant served unverified responses agreeing to produce responsive documents, with verifications received March 16, 2026, but Defendant never produced the documents despite repeated promises. Plaintiff cites CCP § 2031.320 and *Standon Co. v. Superior Court* (1990) 225 Cal.App.3d 898, 903 for the rule that all that must be shown is the responding party's failure to comply as agreed. Plaintiff seeks monetary sanctions against Defendant in the amount of \$1,410.00, noting this is the second motion plaintiff has had to bring to obtain records, with prior discovery orders and sanctions already entered against defendants.

Defendant does not oppose on the merits. Instead, she requests a continuance based on lack of service, asserting that her counsel's firm has no record of ever having received the motion and neither her counsel nor anyone else in the firm has ever received the motion. Defendant argues her counsel's firm has a very specific routine for calendaring hearings and uploading received documents, and that nothing was received or calendared in this matter.

Analysis

1. Motion to Compel Further Responses to FROG No. 15.1¹

A propounding party may move to compel a further response to an interrogatory where "[a]n answer to a particular interrogatory is evasive or incomplete," "[a]n exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate," or "[a]n objection to an interrogatory is without merit or too general." (CCP § 2030.300(a)(1)–(3).) Such motion "shall be accompanied by a meet and confer declaration under Section 2016.040"—a requirement satisfied here. (CCP § 2030.300(b)(1); Zemming Decl. ¶ 3 [telephone discussion in April 2026].) "Each answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party permits." (CCP § 2030.220(a).) Monetary sanctions "shall" be imposed against a

¹ Defendant served the further supplemental response on May 22, 2026, after Plaintiff's April 22, 2026 motion was filed, and the parties did not meet and confer regarding the further supplemental response itself before the hearing. However, because the parties have fully briefed the controlling sufficiency question and the May 22, 2026 response is in the record, the Court declines to find the motion moot and addresses it on the merits. (See *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 409 [post-filing supplemental response does not divest the trial court of authority to rule, and the court has discretion to evaluate sufficiency].)

party who unsuccessfully makes or opposes a motion to compel further responses absent substantial justification or other circumstances making sanctions unjust. (CCP § 2030.300(d).)

FROG No. 15.1 directs Defendant to identify each denial of a material allegation and each special or affirmative defense in her pleadings, and for each state supporting facts, witnesses, and documents. The parties dispute what “material allegation” means. Plaintiff contends that the further supplemental response remains non-Code-compliant because (1) it fails to identify the specific material allegations of the Complaint that Defendant denies, (2) the factual recitations are conclusory rather than responsive, and (3) the witnesses and documents are listed without being tied to the specific denials they support.

Defendant counters that a “material allegation” is statutorily defined as “one essential to the claim or defense and which could not be stricken from the pleading without leaving it insufficient as to that claim or defense,” and that Plaintiff’s Complaint hinges on two material allegations: (1) that Defendant made false statements of fact, and (2) that those statements interfered with Plaintiff’s business, which her further supplemental response addresses along with each of her six affirmative defenses. Defendant’s argument has merit.

FROG No. 15.1 requires identification of each denial of a material allegation—*i.e.*, each denial of an essential element and the supporting facts, witnesses, and documents for each. Plaintiff’s view that Defendant must identify each “specific material allegation” of the Complaint reads “material allegation” more broadly than section 431.10(a) defines it. The statute confines a “material allegation” to one “essential to the claim or defense and which could not be stricken from the pleading without leaving it insufficient.” (CCP § 431.10(a).) For Plaintiff’s defamation causes of action, the essential allegations are that Defendant made false statements of fact and that those statements interfered with Plaintiff’s business—both of which Defendant has identified and denied, with subpart (a)/(b)/(c) support tied to the denial and to each of the six pleaded affirmative defenses.

By way of example, on the denial, Defendant states the supporting facts that “[t]he statements made by [Defendant] regarding the condition of Plaintiff’s animals and property were factually true, and Plaintiff’s business operations were illegal and unpermitted,” and identifies eleven (11) witnesses by name plus County Code Enforcement and Animal Control officers, with documents including written declarations from neighbors, native digital photographs of the animals, and Riverside County Code Enforcement records and complaints. (Schattl Decl. ¶ 5, Ex. A.) The public figure defense is supported by specific facts (*i.e.*, that she voluntarily injected herself into the public spotlight by starring in a National Geographic television show centered on her farm operations) and identified documents. (*Id.*) The harm causation defense is supported by facts that Plaintiff operated unpermitted short-term rentals and an unlicensed dog boarding facility utilizing an illegal septic system that leached into the ground, in direct violation of Riverside County ordinances, with corresponding records identified. (*Id.*) The mitigation defense is similarly supported. (*Id.*) Each of the remaining

defenses—truth, opinion, and actions based on facts known—is supported by parallel subpart (a)/(b)/(c) recitations.

Plaintiff's remaining objection—that subpart (b) lists witnesses without their “contact information”—is not without force, but the named witnesses are the parties, identifiable neighbors, and County officers whose contact information is readily ascertainable, and Defendant cured the more substantive deficiency before the hearing. The Court therefore declines to order a further response on this basis.

Based on the foregoing, the Court finds the further supplemental response to be sufficient. The earlier section 2030.230 cross-reference to SROG responses has been removed and replaced with substantive recitations of supporting facts, witnesses, and documents tied to the denial of the material allegations and to each pleaded affirmative defense. The Court therefore denies Plaintiff's motion to compel further responses to FROG No. 15.1.

Plaintiff's request for \$1,110.00 in monetary sanctions is also denied. Monetary sanctions are mandatory against the party who unsuccessfully makes a motion to compel further responses absent substantial justification or other circumstances making sanctions unjust. (CCP § 2030.300(d).) Because Plaintiff is the unsuccessful party, Plaintiff is not entitled to sanctions.

2. Motion to Compel Compliance

CCP § 2031.320(a) authorizes the Court to compel compliance where a party that served a statement of compliance “thereafter fails to permit the inspection, copying, testing, or sampling in accordance with that party's statement of compliance.” Unlike a motion to compel further responses, a section 2031.320 compliance motion does not require a separate statement or meet-and-confer declaration. (*Standon Co. v. Sup. Ct.* (1990) 225 Cal.App.3d 898, 903.) The moving party's burden is narrow: once the responding party has agreed to produce, “there is no longer any dispute over the right to inspect the documents or objects,” and the only question is whether the responding party has done what it promised. (*Id.*) Monetary sanctions are mandatory against the unsuccessful party absent substantial justification or other circumstances making sanctions unjust. (CCP § 2031.320(b).)

Plaintiff moves to compel production of documents Defendant agreed to produce in her verified responses to RFPs, arguing that no documents have been produced despite multiple promises. Defendant does not oppose on the merits. Defense counsel represents that the firm has no record of ever having received the motion and that no other attorney in the firm has ever received the motion. Defendant asks only that the motion be heard on its merits.²

In the interest of resolving the motion on a complete record, the Court continues the hearing on the motion to compel compliance, and orders Defendant to file and serve

² Plaintiff disputes Defendant's non-receipt account, submitting a declaration from her counsel's legal assistant that the April 22, 2026 service email was sent to both defense counsel and his legal assistant and that no bounce-back was received. (Townsend Decl. ¶¶ 2–4.)

any substantive opposition no later than nine (9) court days before the continued hearing date, and Plaintiff to file and serve any reply no later than five (5) court days before the continued hearing date. All sanctions issues are be reserved for the continued hearing.³

On June 9, 2026, the Court and parties will select a continued hearing date.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2407127	MARQUEZ VS MERCEDES-BENZ USA, LLC.	MOTION FOR ATTORNEYS FEES

Tentative Ruling:

Summary of Ruling: The Court grants the motion in part. Plaintiff is awarded \$33,202.50 in fees and \$1,773.60 in costs.

Factual / Procedural Context:

This is a lemon law case. On May 10, 2022, Plaintiff Alexandria Marquez (“Plaintiff”) purchased a new 2022 Mercedes-Benz C Class C 300 (“Vehicle”) that was manufactured and distributed by Defendant Mercedes-Benz USA, LLC (“Mercedes” or “Defendant”). Plaintiff alleges that the Vehicle was delivered with serious defects and nonconformities to warranty. Plaintiff delivered the Vehicle to authorized repair agents on multiple occasions, but Mercedes and its authorized repair facilities, including Defendant Mercedes-Benz of Temecula (“Dealership”) were unable to cure the defects. Plaintiffs allege that Mercedes refused to repurchase the Subject Vehicle in violation of the Song Beverly Consumer Warranties Act (“Song Beverly Act”).

On December 20, 2024, Plaintiff filed her Complaint. She asserts four causes of action for: (1) Violation of the Songe Beverly Act—Breach of Express Warranty; (2) Violation of the Song Beverly Act—Breach of Implied Warranty; (3) Violation of the Song Beverly Act Section 1793.2(b) and (4) Violation of Civil Code Section 1796.5.

Plaintiff now moves for \$33,702.50 in fees and \$1,1773,60 in costs (total \$35,476.10) as the prevailing party under the Song Beverly Act. Plaintiff argues that the rates and hours were reasonable and necessary. Plaintiff argues that the complexity of the case does not determine the reasonableness of the billing rate. Plaintiff argues that the reasonableness of the rates may be based on counsel’s affidavits without supporting evidence, although the rates requested are reasonable based on the United States Consumer Law Survey and Laffey Matrix. Plaintiff argues that the Court may not apply an across-the-board negative multiplier. Plaintiff argues that the hours incurred for the fee motion are recoverable. Plaintiff argues that she is entitled to costs and expenses.

³ Plaintiff seeks sanctions against Defendant in the amount of \$1,410.00.

Defendant argues that the fee request is unreasonable as to hours and rates. Defendant argues that the billing records reflect inefficiency due to the use of high billers for low level tasks, improper block billing and unnecessary work. Defendant challenges many specific billing entries. Defendant argues that the billing rates are unreasonable because the case is routine and not complex. Defendant argues that the reasonable rate for Riverside County is \$350/hour.

In her Reply, Plaintiff argues that Defendant did not satisfy its burden of showing that each of the challenged entries is improper based on legal citation and facts. Plaintiff argues that the list provided by Defendant is inaccurate and does not show who performed the work or the billing rate. Plaintiff argues that the records do not reflect block billing. Plaintiff argues that all hours were necessary. Plaintiff argues that Defendant has not established that \$350 is the reasonable rate for Riverside County. Plaintiff argues that the higher rates are justified by the contingency risk. Plaintiff argues that Defendant does not challenge any item of cost.

Analysis

Motion for Attorneys' Fees:

Attorneys' fees may be awarded to a prevailing party as costs when authorized by contract, statute or law. (CCP § 1033.5(a)(10).) The Song Beverly Act provides, "[i]f the buyer prevails in an action under [the Song-Beverly Act], the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees, based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code §1794(d).) The trial court must make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case, including the complexity of the case, procedural demands, skill exhibited, and results achieved, the amount of actual time expended and the monetary charge being made for the time expended are reasonable. (*Goglin v. BMW of North America* (2016) 4 Cal. App. 5th 463, 470.) If the time expended or monetary charge is not reasonable, the court should reduce the amount. (*Ibid.*)

Plaintiff asserts that on November 21, 2025, Plaintiff accepted Defendant's settlement offer of \$34,481.93. (Decl. of Acosta, ¶ 37.) The settlement also provided for attorney's fees and costs in an amount to be determined at a later date. (Id at ¶ 38.) Defendant does not appear to dispute that Plaintiff is the prevailing party.

Lodestar:

The lodestar method is used to calculate fees under section 1794(d). (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal. App. 4th 967, 997.) The lodestar amount is based on the time spent and reasonable hourly rate. (Id at 998.) The prevailing buyer has the burden of showing the fees incurred were allowable and reasonably necessary to the

conduct of the litigation. (*Goglin, supra*, 4 Cal. App. 5th at 470.) Verified billing records constitute prima facie evidence that the fees were reasonable. (*Hadley v. Krepel* (1985) 167 Cal. App. 3d 677, 682.) Furthermore, a declaration attesting to the accuracy of the fee bill is presumed credible. (*Horsford v. Board of Trustees of California State University* (2005) 132 Cal. App. 4th 359, 396.) While the verified fee bill is prima facie evidence of the hours and costs incurred, the trial court may make its own determination of the value of the services provided. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1096.) " In particular, ' the lodestar method vests the trial court with the discretion to decide which of the hours expended by the attorneys were ' reasonably spent' on the litigation' [Citation], and to determine the hourly rates that should be used in the lodestar calculus. [Citation.]" (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 35.)

Billing Rates:

A "reasonable" hourly rate is the prevailing rate charged by attorneys of similar skill and experience in the relevant community. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095.) The court may rely on its own experience in determining whether the hourly rate sought is reasonable. (*EnPalm, LLC v. Teitler* (2008) 162 Cal.App.4th 770, 774.) In determining the value of the legal service, courts consider several factors, including, "the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure, and other circumstances in the case." (*PLCM Group, Inc., supra*, 22 Cal. 4th at 1096.)

Plaintiff's counsel requests the following billing rates:

Billers:	Year Admitted:	Rate:	Hours:	Lodestar::
Attorney Acosta	2024	\$450	1.7	\$ 765.00
Attorney Greco	2014	\$595/hour	37.5	\$22,312.50
Attorney Urner	2017	\$525	7.8	\$4,095.00
Attorney Mora	2021	\$450	9.8	\$4,410.00
Attn. Poposyan	2016	\$450	1.5	\$675.00
Law Clerks		\$250	3.2	\$800.00
Paralegal		\$150	4.3	\$645.00
Total:			65.8	\$33,702.50

These rates are within the range of rates generally approved for Song Beverly Act cases in Riverside County.

Hours Incurred:

Counsel produced extensive billing records showing the time for each tasks. Generally, billing records are given a presumption of credibility. (*Horsford v. Board of Trustees of California State University* (2005) 132 Cal.App.4th 359, 396.) "In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice. Failure to raise specific challenges in

the trial court forfeits the claim on appeal.” (*Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn.* (2008) 163 Cal.App.4th 550, 564.)

Defendant argues that the fee request is unreasonable because Senior Attorney Greco billed the majority of the hours at the highest billing rate, even where the tasks could have been performed by less experienced attorneys at lower rates. While many of the legal tasks, like drafting discovery and discovery motions, likely could have been handled by junior-level associates, Defendant has not established that it was entirely unreasonable for Greco to do this work. However, some of the entries appear to involve work that is almost administrative, such as running a Carfax review, researching NHTSA databased, drafting a repair chronology and requesting financial documents from clients. The fee amount is reduced by \$500 for these entries. Otherwise, Defendant has not established that the fees were not reasonably incurred.

Defendant argues that the fee request should be reduced based on counsel's use of block billing. Block billing is generally an issue where apportionment of fees is required, which is not a concern in the present case. (*See Bell v. Vista Unified School Dist.* (2000) 82 Cal.App.4th 672, 689.) Moreover, the billing records contain sufficient detail to determine the reasonableness of the requested hours.

Overall, having reviewed the billing records, the hours appear to be reasonably incurred. Plaintiff is awarded \$33,202.50 in fees.

Litigation Costs:

Plaintiffs also request \$1,773.60 in litigation costs and expenses. “Except as otherwise provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding.” (CCP § 1032(b).) Generally, CCP § 1033.5 enumerates categories of costs that are allowable and items that are not allowable. The Song Beverly Act allows a prevailing buyer to recover costs and expenses which are reasonably incurred in connection with the commencement and prosecution of the action. (Civ. Code §1794(d).) The additional term “expenses” was included in this section to cover items that would not otherwise be included in the detailed statutory definition of “costs” under CCP § 1033.5. (*Jensen v. BMW of North America* (1995) 35 Cal.App.4th 112, 137-138.)

“If the items on a verified cost bill appear proper charges, they are prima facie evidence that the costs, expenses and services therein listed were necessarily incurred. Where the items are properly objected to, they are put in issue, and the burden of proof is upon the party claiming them as costs.” (*Levy v. Toyota Motor Sales, U.S.A., Inc.* (1992) 4 Cal.App.4th 807, 816.) In this case, Defendant has not objected to any items of costs. The costs appear to be necessarily incurred.

Attorney's fees and costs shall be paid no later than 30 days from the date of this order.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2504876	DUNLAP-MORENO VS SAN JACINTO UNIFIED SCHOOL DISTRICT	DEMURRER ON 1ST AMENDED COMPLAINT

Tentative Ruling:

Summary of Ruling: The Court overrules the general and special demurrer entirely. Generally, the FAC identifies sufficient statutory bases for each challenged cause of action, including several statutes incorporated by reference that Defendant does not address in its motion. Defendant is ordered to answer within 15 days.

FACTUAL / PROCEDURAL CONTEXT

On 8/11/2025, Logan Dunlap-Moreno (“Plaintiff”) filed a complaint against San Jacinto Unified School District (“Defendant”). The complaint asserts the following causes of action: (1) negligence; (2) negligent supervision and failure to protect; (3) failure to provide a safe educational environment; (4) violation of statutory duties; and (5) negligent infliction of emotional distress. The complaint states that on 11/28/2023, Plaintiff was physically attacked by another student in the presence of school staff. (Complaint, ¶ 6.) Generally, the complaint seeks to impose liability against Defendant for allowing the assault to happen on school premises and not doing anything to intervene.

On 3/26/2026, Plaintiff filed the operative first amended complaint (“FAC”) after the court sustained Defendant’s demurrer. The FAC adds allegations regarding statutory liability and mandatory duties allegedly breached by Defendant.

Now, Defendant demurs to first, third, fourth, and fifth causes of action on the grounds that each it fail to state facts sufficient and are uncertain. Defendant argues that the first and fifth causes of action are duplicative and common law claims are barred against public entities. Defendant argues the third cause of action, based upon Education Code §§ 32282, 32286, and 234.1 do not provide the basis for a valid claim against Defendant.

In opposition, Plaintiff argues the FAC and each of its causes of action properly state statutory bases for liability against a public entity.

In reply, Defendant restates the arguments from the moving papers.

ANALYSIS

A. Meet & Confer Requirement

CCP § 430.41 requires a meet and confer process via **phone or in person** before filing a demurrer or motion to strike five days before the responsive pleading is

due. The meet and confer process requires the moving party to identify the causes of action or allegations subject to attack and the plaintiff must provide legal support for its position. (CCP § 430.41(a)(1).) The demurring party must file a declaration stating the means by which the parties met and conferred, or the responding party failed to respond or meet and confer in good faith. (CCP § 430.41(a)(3).)

Here, Defendant satisfied the meet and confer requirement via telephonic meet and confer. (Declaration of Anthony Javier, ¶ 4.)

B. General Demurrer – Merits

A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (CCP § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) Facts appearing in exhibits attached to the complaint will also be accepted as true and, if contrary allegations appear in the complaint, will be given precedence. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 606.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

i. First and Fifth Causes of Action

As to the first and fifth causes of action, Defendant argues that each fails to identify a viable statute that creates a duty or authorizes liability against Defendant as a public entity. Defendant argues that Government Code § 815.2 is a “derivative liability” statute and that Civil Code § 1708 does not create an independent statutory duty.

“Tort claims may not be maintained against a public entity unless they are based on a statute or are required by the federal or state constitutions.” (*Lundeen Coatings Corp. v. Department of Water & Power* (1991) 232 Cal.App.3d 816, 832.) Unless provided by statute, a public entity is not liable for an injury. (Gov. Code § 815(a).) A public entity is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his or her employment if the act or omission would have given rise to a cause of action against the employee, unless the employee is immune. (Gov. Code § 815.2.) There is no common law tort liability for public entities—only statutory. (*Green Valley Landowners Association v. City of Vallejo* (2015) 241 Cal.App.4th 425, 441-442.) To state a cause of action against a government entity, every fact essential to the existence of statutory liability must be pled with particularity. (See *Searcy v. Hemet Unified School Dist.* (1986) 177 Cal. App. 3d 792, 802.)

The first cause of action is for negligence and the second cause of action is for negligent infliction of emotional distress. Defendant's demurrer attacks Plaintiff's reliance on Civil Code § 1708 and Government Code § 815.2. Defendant entirely ignores that both causes of action also reference Government Code § 820 which states that a public employee is liable for injury caused by his act or omission to the same extent as a private person. In conjunction with Government Code § 815.2, which states that a public entity is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would have given rise to a cause of action against the employee.

Here, the allegations allege that Defendant is liable via Government Code §§ 815.2 **and** 820 based on the allegations that Mr. Perez was negligent in failing to supervise the hallways of the school or intervene in the physical assault. (FAC, ¶ 50.) This is sufficient for pleading purposes. Additionally, the FAC identifies liability under Education Code § 234.1 which requires a school policy that "...if school personnel witness an act of...bullying, they shall take immediate steps to intervene when safe to do so." (FAC, ¶ 14.) While this allegation is not specifically stated under the headings for the first or fifth causes of action, each cause of action incorporate by reference the entire FAC.

Defendant's argument that a public entity cannot be liable for common law torts ignores the fact that there is such liability if based on a statute. As stated above, the FAC now adequately identifies statutory liability for Defendant based on the alleged acts and omissions of its employee, Mr. Perez.

Finally, Defendant's argument that the first and fifth causes of action are subject to demurrer for being duplicative of the second cause of action is without merit. A demurrer is properly sustained as to a duplicative cause of action "which adds nothing to the complaint by way of fact or theory." (*Award Metals, Inc. v. Superior Court* (1991) 228 Cal.App.3d 1128, 1135.) But here, the first, second, and fifth causes of action (for negligent, negligent supervision, and negligent infliction of emotional distress, respectively) are sufficiently distinct that they each add something distinct to the FAC. The first and fifth causes of action are not subject to demurrer due to being duplicative of the second cause of action.

For these reasons, the court overrules the demurrer to the first and fifth causes of action.

ii. *Third Cause of Action*

The third cause of action is for breach of mandatory duties. It cites to Government Code § 815.6 and Education Code §§ 32282, 32286, and 234.1. Defendant argues that the cited statutes do not impose a mandatory duty on Defendant, as a school district.

Government Code § 815.6 subjects a public entity to liability for a breach of a mandatory duty absent an exercise of reasonable diligence to discharge the duty. "First and foremost, application of section 815.6 requires that the enactment at issue

be *obligatory*, rather than merely discretionary or permissive, in its directions to the public entity; it must *require*, rather than merely authorize or permit, that a particular action be taken or not taken. [Citation.] It is not enough that the public entity or officer have been under an obligation to perform a function if the function itself involves the exercise of discretion. [Citation.] [Citation.] Courts have construed this first prong rather strictly, finding a mandatory duty only if the enactment “affirmatively imposes the duty and provides implementing guidelines.” (*Guzman v. County of Monterey* (2009) 46 Cal.4th 887, 898.)

Unlike with the original complaint, the FAC now directly alleges liability under Government Code § 815.6. As with the section above, Defendant ignores several statutory references in the FAC and the fact that each cause of action incorporates the entire pleading by reference. Not only is Education Code § 234.1 applicable again her, but also § 44807, which sets forth monitoring and supervising requirements for teachers. (FAC, ¶ 12.)

In determining whether complaint is sufficient, as against demurrer, on ground that it does not state facts sufficient to constitute a cause of action, if it appears that plaintiff is entitled to any relief against defendant, the complaint will survive the demurrer, even if the facts may not be clearly stated or though plaintiff may demand relief to which he is not entitled under facts alleged. (*Augustine v. Trucco* (1954) 124 Cal.App.2d 229, 237.) In fact, it is error for trial court to sustain demurrer when plaintiff has stated cause of action under any possible legal theory. (*Howard Jarvis Taxpayers' Assn. v. Board of Supervisors* (1996) 41 Cal.App.4th 1363, 1372.) Therefore, because the third cause of action contains allegations of proper statutory bases not raised in Defendant's demurrer, the issue of whether the statutes included in Defendant's demurrer regarding the Third Cause of Action impose mandatory duties is moot at the pleading stage.

The court overrules the demurrer to the third cause of action.

iii. Fourth Cause of Action

The fourth cause of action is for dangerous condition of public property. Defendant argues that this cause of action is barred due to a failure to comply with the Government Claims Act as Plaintiff's government tort claim makes no mention of a theory based on a dangerous condition of public property.

Plaintiff's government tort claim is not attached to the FAC nor does Defendant include the tort claim as an exhibit along with a request for judicial notice. Therefore, under this argument, it cannot be said that the FAC is subject to demurrer because the defect does not appear within the four corners of the pleading or evidence of which the court took judicial notice.

As an additional issue, though not raised by Defendant, a cause of action for “dangerous condition of public property” was not a part of the original complaint. When a demurrer is sustained with leave to amend, the leave must be construed as permission to the pleader to amend the causes of action to which the demurrer has

been sustained, not add entirely new causes of action. (*Patrick v. Alacer Corp.* (2008) 167 Cal.App.4th 995, 1015; *Zakk v. Diesel* (2019) 33 Cal.App.5th 431, 456.) But addition of a new cause of action may be proper when it “directly responds to the court’s reason for sustaining the earlier demurrer.” (*Patrick, supra*, 167 Cal.App.4th at 1015 [after demurer sustained for plaintiff’s apparent lack of standing on shareholder claims, complaint amended to add claim for declaratory relief to establish plaintiff’s community property interest in shareholdings].) The court sustained Defendant’s demurrer to the original complaint’s cause of action for “failure to provide a safe education environment” as it was based on California Constitution, Article 1, § 28(f)(1) which did not provide a private cause of action. Here, Plaintiff changed the title of the cause of action to dangerous condition of public property and cites Government Code § 835 as the statutory basis for liability. In ruling upon demurrers, courts consider whether any cause of action has been alleged sufficiently, notwithstanding that a cause of action is labeled otherwise. (*Berkley v. Dowds* (2007) 152 Cal.App.4th 518, 525.)

While the title of the cause of action changed, the substance of the allegations are similar – that is, Defendant failed to ensure a safe environment free from bullying and physical violence. The difference is the addition of Government Code § 835 as the basis for liability, which is a direct response to the court’s reason for sustaining the earlier demurrer.

For these reasons, the court overrules the demurrer as to the fourth cause of action.

C. Special Demurrer for Uncertainty – Merits

Defendant also argues that each cause of action is uncertain. Demurrers for uncertainty are generally disfavored. (*Chen v. Berenjian* (2019) 245 Cal.App.5th 811.) To that end, demurrers for uncertainty will only be sustained where the defendant cannot reasonably determine what issues must be admitted or denied, or what claims are directed against him; or where the pleading is so incomprehensible that a defendant cannot reasonably respond. (*Khoury v. Maly’s of California, Inc.* (1993) 14 Cal.App.4th 612, 616; *Mahan v. Charles W. Chan Ins. Agency, Inc.* (2017) 14 Cal.App.5th 841, 848, fn. 3.) Demurrers for uncertainty are to be overruled when addressed to inconsequential matters, the facts are within the knowledge of the defendant or ascertainable in discovery, or not dispositive of one or more causes of action. (*Khoury, supra*, at p. 616.)

First, the court previously overruled Defendant’s first demurrer on uncertainty grounds. There is nothing in the FAC nor in Defendant’s motion that supports renewing said challenge. Notwithstanding the prior ruling, none of the challenged causes of action are so uncertain that Defendant cannot reasonably determine the general crux of the allegations. The causes of action are not so incomprehensible that Defendant cannot respond.

The court overrules the special demurrer for uncertainty under CCP § 430.10(f). The Court overrules the general and special demurrer entirely. Generally, the FAC identifies sufficient statutory bases for each challenged cause of action, including

several statutes incorporated by reference that Defendant does not address in its motion. Defendant is ordered to answer within 15 days.

6.

CASE #	CASE NAME	HEARING NAME
CVSW2400229	THOMAS VS HARBOR FREIGHT TOOLS USA, INC.	MOTION FOR SUMMARY JUDGMENT ON COMPLAINT

Tentative Ruling:

Summary of Ruling:

The Court continues the motion for summary judgment and trial to allow Plaintiff to retain new counsel. The Court and parties will confer on June 9, 2026 to select the new dates.

Factual/Procedural Context

This products liability action arises from injuries sustained by Plaintiff Jeffrey Jacob Thomas ("Plaintiff") after attempting to store a Haul-Master heavy duty folding trailer manufactured, designed, assembled, let, or sold by Defendant Harbor Freight Tools USA, Inc. ("Defendant").

On January 8, 2024, Plaintiff filed a Complaint against Defendant, alleging causes of action for: (1) strict products liability; (2) breach of warranty; and (3) negligence products liability.

On November 20, 2025, Defendant filed a motion for summary judgment, or in the alternative, summary adjudication against Plaintiff.

On December 5, 2025, Plaintiff's counsel filed a motion to be relieved as counsel.

On December 30, 2025, the parties filed a joint stipulation to continue the hearing on this motion and trial to allow Plaintiff additional time to locate new counsel or handle the case pro per.

On January 25, 2026, the Court granted Plaintiff's counsel's motion to be relieved as counsel. The Court also granted the parties' joint stipulation and continued the motion for summary judgment to June 9, 2026, and continued trial to July 17, 2026.

Plaintiff, in pro per, filed an opposing declaration to the motion for summary judgment, arguing that he is unable to submit an opposition to the motion for summary judgment on its merits because he is not an attorney and lacks the legal training, technical resources, and expert relationships necessary to do so. Plaintiff attests that he has contacted more than 10 plaintiff's firms specializing in products liability and personal injury litigation, but none were able to undertake representation given the proximity of

the motion for summary judgment and trial. Plaintiff contends that he continues to seek counsel.

In reply, Defendant contends that the Court has previously granted Plaintiff a continuance to retain new counsel, which he has failed to do. Defendant argues that its motion should be granted because Plaintiff's opposition is untimely and fails to oppose the motion for summary judgment on its merits.

Trial is currently set for July 24, 2026.

Analysis

"Though often said, it appears necessary to again reiterate that a summary judgment is a drastic measure which deprives the losing party of trial on the merits." (*Bunzel v. American Academy of Orthopaedic Surgeons* (1980) 107 Cal.App.3d 165, 169.)

"To mitigate summary judgment's harshness, the statute's drafters included a provision making continuances—which are normally a matter within the broad discretion of trial courts—virtually mandated 'upon a good faith showing by affidavit that a continuance is needed to obtain facts essential to justify opposition to the motion.' [Citation.]" (*Bahl v. Bank of America* (2001) 89 Cal.App.4th 389, 395.) Specifically, Code of Civil Procedure section 437c(h) states, "If it appears from the affidavits submitted in opposition to a motion for summary judgment or summary adjudication, or both, that facts essential to justify opposition may exist but cannot, for reasons stated, be presented, the court shall deny the motion, order a continuance to permit affidavits to be obtained or discovery to be had, or make any other order as may be just. The application to continue the motion to obtain necessary discovery may also be made by ex parte motion at any time on or before the date the opposition response to the motion is due." (C.C.P. § 437c(h).) "The drafters' inclusion of the italicized words 'may' and 'shall' leaves little room for doubt that such continuances are to be liberally granted. Indeed, as one court noted, 'an opposing party can compel a continuance of a summary judgment motion' by making a declaration meeting the requirements of section 437c, subdivision (h). [Citation.]" (*Bahl, supra*, 89 Cal.App.4th at 395-396.)

However, "any request for such a continuance must be submitted on or before the opposition is due." (*Levingston v. Kaiser Foundation Health Plan, Inc.* (2018) 26 Cal.App.5th 309, 315.) Here, Plaintiff's declaration "in support of notice of limited non-opposition to Defendant's motion for summary judgment" is untimely, as "all papers opposing a motion so noticed shall be filed with the court and a copy served on each party at least nine court days...before the hearing." (C.C.P. § 1005(b).) The hearing on this motion is set for June 8, 2026. Accordingly, Plaintiff should have filed any opposition on or before March 26, 2026. Plaintiff did not file his declaration until June 1, 2026. As such, Plaintiff's opposing declaration is untimely and does not comply with the requirements for an application for a continuance under section 437c(h).

However, the untimeliness of Plaintiff's opposing declaration does not deprive the Court of jurisdiction to continue the hearing on a motion for summary judgment. "Where a plaintiff cannot make the showing required under section 437c, subdivision (h), a plaintiff may seek a continuance under the ordinary discretionary standard applied to requests for a continuance. [Citation.] This requires a showing of good cause. [Citation.]" (*Hamilton v. Orange County Sheriff's Department* (2017) 8 Cal.App.5th 759, 765.) "[I]n deciding whether to continue a summary judgment to permit additional discovery courts consider various factors, including (1) how long the case has been pending; (2) how long the requesting party had to oppose the motion; (3) whether the continuance motion could have been made earlier; (4) the proximity of the trial date or the 30-day discovery cutoff before trial; (5) any prior continuances for the same reason; and (6) the question whether the evidence sought is truly essential to the motion." (*Chavez v. 24 Hour Fitness USA, Inc.* (2015) 238 Cal.App.4th 632, 644.)

"When lack of diligence results in a party's having insufficient information to know if facts essential to justify opposition may exist, and the party is therefore unable to provide the requisite affidavit under Code of Civil Procedure section 437c, subdivision (h), the trial judge may deny the request for continuance of the motion." (*Bahl, supra*, 89 Cal.App.4th at 398.)

Here, good cause exists to continue the hearing on the motion for summary judgment and trial. Plaintiff contends that his prior counsel failed to retain a single expert witness on his behalf, and argues that expert testimony is essential to oppose the motion for summary judgment and prevail at trial, especially as Defendant presented five engineers and full expert support at mediation. (Thomas Decl., ¶ 4 and 6.) Although the Court previously continued the motion for summary judgment and trial once to allow Plaintiff to retain counsel, Plaintiff attests that he has contacted more than 10 plaintiff's firms in Los Angeles and Southern California to take his case, but "[n]one were able to undertake the representation given the proximity of the MSJ hearing and trial date." (Thomas Decl., ¶ 9.) Plaintiff further attests that he continues to seek counsel. (Thomas Decl., ¶ 9.) Accordingly, Plaintiff's inability to obtain evidence to oppose the motion for summary judgment is not due to his lack of diligence. Given that Plaintiff's complaint is based on products liability allegations, expert testimony is undoubtedly necessary to support his opposition to Defendant's motion for summary judgment.

Thus, the Court should continue the motion for summary judgment one last time to allow Plaintiff a final opportunity to retain new counsel. Because trial is currently scheduled for July 24, 2026, and a motion for summary judgment "shall be heard no later than 30 days before the date of trial, unless the court for good cause orders otherwise," the Court should also continue the trial date. (C.C.P. § 437c(a)(3).) The Court continues the motion for summary judgment and trial to allow Plaintiff to retain new counsel. The Court and parties will confer on June 9, 2026 to select the new dates.